



DECISION

Complaint No. : POS/2106/2024/HYD225 & POS/1883/2024/HYD/181

Name and address of the complainant : Mr. Irshad Ali Shaikh s/o Ghulam Rasool Shaikh,
Jamal Shah Ka Pir, Dharam Shala Road,
Hyderabad.

Name of the Agency Complained against : Sindh Building Control Authority, Hyderabad.

Name & Designation of Investigating Officer : Syed Muhammad Sajjad Hyder, Regional Director,
Regional Office, Hyderabad.

Vetted by : **Muhammad Naseer Jamali, Advisor-N**

Subject : COMPLAINT REGARDING FAILURE TO TAKE ACTION
AGAINST ILLEGAL CONSTRUCTION OF BUILDING
WITHOUT APPROVAL OF S.B.C.A. ON THE ADJACENT
PLOT OF THE COMPLAINANT

Complaint

Mr. Irshad Ali Shaikh filed a complaint dated 24.04.2024 against Sindh Building Control Authority, Hyderabad stating that he is resident of Jamal Shah Ka Pir, Dharam Shala Road, Hyderabad. The owner of his adjacent plot is raising illegal construction which may adversely affect crossing of air & light, causing inconvenience to him and other neighbors. Being aggrieved, he solicited intervention of this Institution.

Proceedings

2. The complaint was admitted for investigation u/s 10 (3) of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) subject to submission of mandatory documents and by condoning the delay.

3 This office issued a notice vide letter dated 20.05.2024 to the Deputy Director, Sindh Building Control Authority, Hyderabad for report, followed by reminders. The Deputy Director, SBICA informed vide letter dated 19.09.2025 that there is an old constructed building at site and no illegal construction is being raised on said plot. He enclosed the photographs of the building as an evidence.

4. The report of the agency was sent to the complainant for rejoinder vide letter dated 06.10.2025. The reminder was sent through dispatch rider who submitted report that he visited at the address of the complainant. It was informed by the neighbors that the complainant has passed away.

Findings

5. The agency did not point out any irregularity or illegal construction on the adjacent plot of the complainant.

Decision

6 In view of the above and in exercise of powers vested in me under section 11 of Establishment of the office of the Ombudsman for the Province of Sindh Act, 1991 (amended upto date), the subject complaint is disposed of due to death of the complainant.

7. This also disposes of the complaint No: POS/1883/2024/HYD/181file by the same complainant with regard to same subject matter against the same agency.

Given under my hand and seal of the office



Sd/-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz, PAS
Ombudsman Sindh

Karachi, dated 04th December, 2025